

## CCRB INVESTIGATIVE RECOMMENDATION

|                                                   |                                     |                           |                                                                                                                                                                                                                       |
|---------------------------------------------------|-------------------------------------|---------------------------|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| Investigator:<br>Julia Pagnamenta                 | Team:<br>Squad #02                  | CCRB Case #:<br>202006824 | <input checked="" type="checkbox"/> Force <input type="checkbox"/> Discourt. <input type="checkbox"/> U.S.<br><input checked="" type="checkbox"/> Abuse <input type="checkbox"/> O.L. <input type="checkbox"/> Injury |
| Incident Date(s)<br>Tuesday, 09/22/2020 6:00 PM   | Location of Incident:<br>§ 87(2)(b) | 18 Mo. SOL<br>5/4/2022    | Precinct:<br>75                                                                                                                                                                                                       |
| Date/Time CV Reported<br>Tue, 09/22/2020 11:01 PM | CV Reported At:<br>IAB              | How CV Reported:<br>Phone | Date/Time Received at CCRB<br>Tue, 10/13/2020 12:23 PM                                                                                                                                                                |

| Complainant/Victim | Type       | Home Address |
|--------------------|------------|--------------|
| § 87(2)(b)         | § 87(2)(b) | § 87(2)(b)   |
| § 87(2)(b)         | § 87(2)(b) | § 87(2)(b)   |

| Subject Officer(s)     | Shield | TaxID  | Command |
|------------------------|--------|--------|---------|
| 1. POM Henry Henriquez | 08780  | 938657 | 075 PCT |
| 2. POM Michael Gessner | 18502  | 940186 | 075 PCT |

| Officer(s)              | Allegation                                                                         | Investigator Recommendation    |
|-------------------------|------------------------------------------------------------------------------------|--------------------------------|
| A . POM Henry Henriquez | Force: Police Officer Henry Henriquez used physical force against § 87(2)(b)       | A . Alleged Victim Unavailable |
| B . POM Michael Gessner | Force: Police Officer Michael Gessner used physical force against § 87(2)(b)       | B . Alleged Victim Unavailable |
| C . POM Henry Henriquez | Abuse: Police Officer Henry Henriquez damaged § 87(2)(b)'s property.               | C . Complainant Uncooperative  |
| D . POM Michael Gessner | Abuse: Police Officer Michael Gessner damaged § 87(2)(b)'s property.               | D . Complainant Uncooperative  |
| E . POM Henry Henriquez | Abuse: Police Officer Henry Henriquez forcibly removed § 87(2)(b) to the hospital. | E . Alleged Victim Unavailable |
| F . POM Michael Gessner | Abuse: Police Officer Michael Gessner forcibly removed § 87(2)(b) to the hospital. | F . Alleged Victim Unavailable |

## Case Summary

On September 22<sup>nd</sup>, 2020, § 87(2)(b) called the Internal Affairs Bureau (IAB) via 911 and filed a complaint. § 87(2)(b) complaint was referred to the CCRB and received on October 13<sup>th</sup>, 2020.

On October 26<sup>th</sup>, 2020, § 87(2)(b) scheduled an interview appointment for October 27<sup>th</sup>, 2020. § 87(2)(b) said she and her husband, § 87(2)(b) shared a residence and phone number. § 87(2)(b) said § 87(2)(b) would not be able to provide a statement to the CCRB, as he had “§ 87(2)(b),” and was unable to “verbalize words.” NYPD document ICAD #§ 87(2)(b) provided § 87(2)(b)s residence and number as being the same as § 87(2)(b) and indicated that he had “§ 87(2)(b)

On October 27<sup>th</sup>, 2020, § 87(2)(b) began providing a statement over the telephone, but repeatedly did not answer the Investigator’s questions and said she needed to tend to her husband. § 87(2)(b) disengaged the line before the interview could be concluded.

On October 29<sup>th</sup>, 2020, the Investigator placed a call to § 87(2)(b) who scheduled a second interview appointment for November 2<sup>nd</sup>, 2020. The undersigned called § 87(2)(b) at the scheduled time on November 2<sup>nd</sup>, 2020 and § 87(2)(b) answered the phone. When the Investigator started speaking, the line was disengaged. A second call was placed to § 87(2)(b) an hour later, and a voicemail message was left. Between November 4<sup>th</sup>, 2020, and November 6<sup>th</sup>, 2020, two more calls were placed to § 87(2)(b) and a voicemail message was left after each call.

§ 87(2)(g)

§ 87(2)(b) it is recommended that the allegations for which she is a victim be closed as **complainant uncooperative**.

§ 87(2)(g)

§ 87(2)(b) it is recommended that the allegations for which he is an alleged victim be closed as **alleged victim unavailable**.

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Squad No.: 2

Investigator: Julia Pagnamenta Inv. Julia Pagnamenta 11/12/2020  
Signature Print Title & Name Date

Squad Leader: Alexander Opoku-Agyemang IM Alexander Opoku-Agyemang 11/16/2020  
Signature Print Title & Name Date

Reviewer: \_\_\_\_\_  
Signature Print Title & Name Date